

**Court No. - 37**

**Case :-** WRIT - C No. - 16038 of 2012

**Petitioner :-** Ajay Kumar Jaiswal

**Respondent :-** U.P. Power Corporation Ltd. And Others

**Petitioner Counsel :-** Pramod Kumar Srivastava

**Respondent Counsel :-** Anubhav Shukla

**Hon'ble Sunil Ambwani,J.**

**Hon'ble Pankaj Naqvi,J.**

We have heard learned counsel for the petitioner. Shri Anubhav Shukla appears for the respondents.

It is alleged that the petitioner has taken one room in a house from one Shri Shiv Babu son of Shri hari Prasad in Village Bhagwanpur, Post Office Imali Gaon, Newada, Tehsil Chayal Distt. Kaushambi for running the bank extension services for which he has been appointed as Business Correspondent of the State Bank of India, Regional Business Office-Region-4, Allahabad. A surprise inspection was made by the checking party of the office of the Executive Engineer, EUDD, U.P. Power Corporation, Kaushambi on which it is alleged that the petitioner was unauthorisedly drawing electricity of 2 KW by laying a cable. A first information report was lodged, on which compounding amount was worked out at Rs.20,000/-, which has been deposited by the petitioner and on which the Executive Engineer has made a recommendation to drop the criminal case against him.

By this writ petition the petitioner has raised an issue as to whether the extension of the bank services run by the business correspondence under contract with the State Bank of India, which only requires one laptop, a printer and the connection of light and fan, can be treated as commercial establishment for assessment of electricity charges.

In the provisional assessment order made under Section 126 (1) of the Electricity Act, 2003, the basis of treating the use of the premises and the Tariff entries have not been mentioned. The respondent authorities have also not considered the letter given by the bank explaining the nature of work and requirement of the 'Business Correspondent' working under an agreement with them.

The question raised by the petitioner, is going to affect the method of calculation of the bill of electric supply to about 2000 BC

centres run by the Bank in villages, to facilitate micro banking. The Regional Manager of the bank has verified by his letter dated 20.8.2011, that the business correspondent only requires a personal computer and printer and that the nature of the work should not be treated as commercial.

Having regard to the facts and circumstances and the issue involved, which may affect the large number of consumers, who are under contract with the bank as a 'Business Correspondent', we direct that in case the petitioner files objections, the same will be decided by the Executive Engineer, EUDD, Distt. Kaushambi-respondent no.2, and thereafter if the petitioner is still aggrieved, he may file an appeal under Section 127 of the Act. The Executive Engineer and thereafter if it is necessary to file an appeal, the appellate authority will give reasons supporting the assessment on commercial basis, and will refer to the relevant provisions of the U.P. Electricity Supply Code, 2005 in making the order, keeping in mind the nature of work of facilitating micro-banking providing services to rural areas as also providing employment to thousands of unemployed young men and women.

Since the question relates to micro banking by the State Bank of India, which is going to affect large number of persons, we find it appropriate to stay the recovery for a period of 3 months. The petitioner's objections, if filed within one week, will be decided within one month. The appeal will also be decided very expeditiously and in any case the orders will be passed by the authorities/ appellate authority, within three months.

The writ petition is **disposed of** accordingly.

**Order Date :- 2.4.2012**

SP/